

Capawesome Platform — Data Processing Agreement

COMPLIANCE CAPTURE by VYVE Health CIC. Canonical source:

<https://capawesome.io/legal/data-processing-agreement/> — retrieved 12 July 2026. Provider: Genz IT Solutions GmbH (Germany). Document states Last Updated / Effective: 2026-04-16. This DPA applies by acceptance of the Capawesome Terms of Service; no separate signature is required. Captured verbatim below for the VYVE sub-processor file (register row: Capawesome — OTA update delivery).

1. Subject Matter and Scope

1.1. This Data Processing Agreement ("DPA") governs the Processing of Personal Data that Genz IT Solutions GmbH ("Provider", "Processor") processes via the cloud services on behalf of the customer ("Controller").

1.2. This DPA applies exclusively to the cloud services of the Capawesome Platform. Not covered: Capawesome Insiders SDKs (delivered via the package registry, run entirely locally; no data flow to Provider servers at runtime) and standalone open-source libraries.

1.3. This DPA applies uniformly to the trial period and to paid subscriptions.

2. Precedence

2.1. In the event of a conflict between this DPA and the Terms of Service, this DPA shall prevail insofar as the Processing of Personal Data is concerned.

3. Nature, Purpose and Duration of Processing

3.1. The nature, purpose and subject matter of the Processing and the categories of Personal Data and Data Subjects are set out in Annex 1.

3.2. Processing takes place for the duration of the contractual relationship plus the deletion and retention periods in Section 13.

3.3. The sole purpose of the Processing is the provision of the cloud services commissioned by the Controller.

4. Instructions

4.1. The Provider processes Personal Data solely on documented instructions from the Controller; this DPA and the Terms of Service constitute the initial instructions.

4.2. The Controller is the sole Controller under data protection law for the data processed on its behalf.

4.3. The Controller shall independently obtain all consents, notices and legal bases required under the GDPR and TDDDG for collection and transmission of end-user data via Capawesome SDKs.

4.4-4.5. The Provider will inform the Controller if an instruction infringes data protection law and may suspend processing or refuse manifestly unlawful instructions.

5. Confidentiality

All persons authorised to process Personal Data are bound by confidentiality obligations surviving termination of their engagement.

6. Technical and Organisational Measures

TOMs per Annex 2 implemented before processing commences (Art. 32 GDPR); amendments must not reduce the documented level of security.

7. Sub-processors

- 7.1. General authorisation; current list at capawesome.io/legal/subprocessors/ forms Annex 3.
- 7.2. 30 days' notice before new/changed sub-processors.
- 7.3. Right to object on legitimate grounds; extraordinary termination with pro-rata refund if unresolved.
- 7.5. Apple and Google act as API pass-through to the Controller's own developer accounts — independent controllers, not Sub-processors.
- 7.6. Merchant of Record (Polar Software Inc., Lemon Squeezy LLC) act as independent controllers.

8. International Data Transfers

- 8.2. For US transfers: EU-US Data Privacy Framework primarily, plus EU SCCs (Implementing Decision (EU) 2021/914, Module 3 Processor-to-Processor) per Annex 4.
- 8.3. Transfer Impact Assessment conducted per third-country transfer, available on request.

9. Assistance with Data Subject Rights

Provider assists with Art. 15-22 GDPR requests and forwards direct requests without undue delay.

10. Personal Data Breach Notification

Notification without undue delay and no later than 48 hours after becoming aware of a breach (Art. 33 GDPR), with staged information permitted within the deadline.

11. DPIA Assistance

Reasonable assistance with DPIAs (Art. 35) and prior consultation (Art. 36).

12. Audit Rights

Documentation-first (certificates, independent audit reports, questionnaires); on-site audits as last resort with 30 days' notice, max once yearly, Controller bears costs.

13. Deletion or Return after Termination

- 13.1. Controller chooses within 30 days between export/return and deletion.
- 13.3. No choice within the period: deletion from active systems.
- 13.4. Immutable backups deleted in regular rotation (typically 30-90 days), isolated in the interim.
- 13.6. Trial-only: 14-day export period.

14. Aggregation and Anonymisation

- 14.1. Irreversibly anonymised statistical use permitted.

14.2. Personal end-user data is NOT used for the Provider's own purposes and NOT for training, fine-tuning or improving AI/ML models.

15. Liability

Per Terms of Service; Art. 82 GDPR unaffected.

16. Final Provisions

German law; exclusive jurisdiction Konstanz; English version authoritative.

Annex 1 — Processing Overview

Purpose: provision of the commissioned cloud services. Data subjects: end users of the Controller's applications; Controller's employees/agents where contained in source code, artifacts or credentials. Categories: Application Delivery Data (app identifier, version info, platform/OS data, installation-specific device identifier, bundle/channel identifier, IP addresses); Build Artifacts and Source Code (incl. build secrets which regularly contain Personal Data, in scope incl. the 48-hour notification duty); Publishing Artifacts; Workflow and Integration Data. Demarcation: account/organisation metadata, authentication data, dashboard/CLI telemetry and support data are processed by the Provider as independent Controller under its Privacy Policy, outside this DPA.

Annex 2 — Technical and Organisational Measures

Confidentiality: MFA for all administrative production access, least privilege; customer secrets encrypted at rest, access limited to the automated pipeline; source code processed in isolated build environments; employee confidentiality; hashed passwords, password manager. Integrity: TLS 1.2+ in transit; industry-standard encryption at rest; client-side bundle signature verification for live updates; input logging. Availability: redundancy, encrypted backups with restore tests, DDoS protection. Review: SOC 2 Type II (report under NDA); annual external penetration tests from 2026; continuous monitoring. Data separation: production/test strictly separated; customer data logically separated.

Annex 3 — Sub-processors

Current list at capawesome.io/legal/subprocessors/ (captured separately in the VYVE file).

Annex 4 — EU Standard Contractual Clauses

SCCs (Implementing Decision (EU) 2021/914, Module 3) incorporated by reference; Appendix I.C supervisory authority: LfDI Baden-Wuerttemberg.